

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Complaint and Answer filed in this matter. The request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. CCP § 438(c)(1)(A) provides a plaintiff may move for judgment on the pleadings if the complaint states sufficient facts to constitute a cause of action and the answer does not state facts sufficient to constitute a defense to the complaint. The grounds for the motion shall appear on the face of the pleading or from any matter of which the Court can take judicial notice. CCP § 438(d).

The Complaint filed July 30, 2025 was drafted using Judicial Council form PLD-C-001 and contains two breach of contract causes of action. In the First Cause of Action, Plaintiffs alleges that the parties entered into a written contract on September 6, 2015 and that Defendant breached the contract on October 6, 2024 by failing to remit any further payment on the account, that Plaintiff has performed all obligations to Defendant, and that Plaintiff has suffered damages in the amount of \$13,067.34. The Second Cause of Action alleges a breach of contract based on an implied in fact contract with the same basic allegations, however, instead of a written contract, Plaintiff alleges that Plaintiff issued Defendant a credit card that Defendant accepted and used, and that in exchange for the use of the card, Defendant agreed to pay principal and interest. Plaintiff attached the Consumer Credit Card Agreement and Disclosure Statement Visa as Exhibit A to the Complaint. In the Answer, Defendant checked Item 3.a. indicating that Defendant admits that all of the statements in the Complaint are true except facts listed. Defendant listed no facts. Under the prayer, Defendant wrote, “I do not deny that I owe Wells Fargo money. I simply would like some sort of settlement and re-pay program that would allow me to pay off the debt over time.”

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance, (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” *Richman v. Hartley* (2014) 224 Cal. App. 4th 1182, 1186. Plaintiff has alleged all the necessary elements for each cause of action and Defendant has admitted the allegations are true.

The motion is **GRANTED**. Judgment is in favor of the Plaintiff in the amount of \$13,067.34. A proposed order and proposed judgment were lodged with the Court and will be modified to reflect the Court’s final ruling. The Court notes that the proposed Judgment includes costs. A Memorandum of Costs has not been filed. Therefore costs will not be included in the judgment.

WHITE VS. PERRIN CONSTRUCTION, INC., ET AL.
CASE NUMBER: 25CV-0208754

Tentative Ruling on Motions to Compel Further Responses to Discovery: Plaintiff James White filed two motions compelling further responses to Plaintiff’s Form Interrogatories, Set One, No. 4.1 and Plaintiff’s Request for Production, Set One, No. 5. Defendant Perrin Construction, Inc. opposed both motions. As a preliminary matter, the Court finds that the motions were timely filed.

Meet and Confer. A party seeking further responses to discovery must meet and confer in an attempt to resolve the issue prior to filing the motion. The Court finds that Plaintiff complied with the meet and confer requirement.

Merits. Form Interrogatory No. 4.1 seeks information regarding any insurance policies in effect at the time of the incident where the defendant was or might be insured in any manner for claims that arose from the incident. No. 4.1 is based on CCP § 2017.210.

A party may obtain discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy in whole or in part a judgment that may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment. This discovery

may include the identity of the carrier and the nature and limits of the coverage. A party may also obtain discovery as to whether that insurance carrier is disputing the agreement's coverage of the claim involved in the action, but not as to the nature and substance of that dispute. Information concerning the insurance agreement is not by reason of disclosure admissible in evidence at trial.

CCP § 2017.210

Request for Production, Set One, No. 5 seeks any policy document identified in Form Interrogatory 4.1. Rather than providing the information requested, Defendant took the position that because an insurance carrier denied coverage for the incident, that the information regarding that policy was not subject to discovery. The basis for this argument appears to be that because coverage was denied, the "may be liable" language excludes the policy. This position ignores that CCP § 2017.010 includes "A party may also obtain discovery as to whether that insurance carrier is disputing the agreement's coverage of the claim involved in the action, but not as to the nature and substance of that dispute." While the policy itself has not been disclosed, in order to obtain a denial, Defendant must have submitted this incident to the insurance company. The insurance company denying coverage does not mean that Plaintiff no longer has the right to discovery as to the policy. Defendant's position is unreasonable and not supported by statute or case law. Defendant should have provided the requested information without any objection as this is basic and standard information that is so commonplace that it is listed in the general Form Interrogatories. The motions are **GRANTED**.

Sanctions. Plaintiffs request sanctions in the amount of \$1,357.20 total between the two motions. This is based on 5.5 hours at \$225 per hour and the two \$60 filing fees. The Court finds that the hours expended and hourly rate requested are reasonable. The Court further finds that Defendant did not act with substantial justification. Although Defendant eventually offered to provide the policy, Defendant did not do so and refused to amend their discovery responses. Sanctions are awarded to Plaintiff as requested.

The motions are both **GRANTED**. Complete responses to Form Interrogatories, Set One, No. 4.1 and Request for Production, Set One, No. 5 are ordered to be provided within fifteen days of today's hearing. Sanctions are awarded to Plaintiff in the amount of \$1,357.20 (\$678.60 per motion). Plaintiff provided proposed Orders that will be modified to reflect the Court's ruling.

WRIGHT, ET AL. VS. OROS BORJON, ET AL.

CASE NUMBER: 25CV-0208213

Tentative Ruling on Motion for Summary Judgment: Plaintiff Patricia L. Wright, Trustee of the Patricia L. Wright Trust DTD July 8, 2020 and Plaintiff Deborah Lee Hammerich, Trustee of the 2005 Amendment and Restatement of the 2000 Deborah Lee Hammerich Revocable Trust DTD September 28, 2020 move for summary judgment on their Complaint for Partition filed on July 16, 2025. Defendants Jose Fernando Oros Borjon and Ivonne Oros Borjon, Trustees of the Borjon Family Trust DTD January 19, 2019 filed a Limited Response to the motion.

As a preliminary matter, the Court notes that Defendants, who are proceeding in pro per, are named as Trustees of the Borjon Family Trust DTD January 19, 2019. Only those actively licensed with the State Bar may practice law in California. B&P Code § 6125. Those who practice law without a license can be both criminally prosecuted and held in contempt. B&P Code §§ 6126 and 6126.3. The privilege of practicing law is confined to appearance on behalf of others and does not affect person's right to appear and conduct his own case. *Gray v. Justice's Court of Williams Judicial Tp., Colusa County* (1937) 18 Cal. App. 2d 420. Persons may represent their own interests in legal proceedings, but may not represent the interests of another unless they are active members of the State Bar. *Golba v. Dick's Sporting Goods, Inc.* (2015) 238 Cal. App. 4th 1251. Non-attorney trustees cannot appear on behalf of a trust when there are other beneficiaries to the trust. *Ziegler v. Nickel* (1998) 64 Cal. App. 4th 545.